

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3349

By: Williams

AS INTRODUCED

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 748, as last amended by Section 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 748), which relates to human trafficking; updating language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 748, as last amended by Section 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 748), is amended to read as follows:

Section 748. A. As used in Sections 748 ~~and 748.2~~ through 748.3 of this title:

1. "Coercion" means compelling, forcing or intimidating a person to act by:

a. threats of harm or physical restraint against any person,

b. any act, scheme, plan, or pattern intended to cause a person to believe that performing, or failing to

- perform, an act would result in serious physical,
financial, or emotional harm or distress to or
physical restraint against any person,
- c. the abuse or threatened abuse of the law or legal process,
 - d. knowingly destroying, concealing, removing, confiscating or possessing any actual or purported passport, labor or immigration document, or other government identification document, including but not limited to a driver license or birth certificate, of another person,
 - e. facilitating or controlling ~~a person's~~ access of a person to any addictive or controlled substance other than for legal medical purposes,
 - f. blackmail,
 - g. demanding or claiming money, goods, or any other thing of value from or on behalf of a prostituted person where such demand or claim arises from or is directly related to the act of prostitution,
 - h. determining, dictating or setting the times at which another person will be available to engage in an act of prostitution with a third party,
 - i. determining, dictating or setting the places at which another person will be available for solicitation of,

1 or to engage in, an act of prostitution with a third
2 party, or

3 j. determining, dictating or setting the places at which
4 another person will reside for purposes of making such
5 person available to engage in an act of prostitution
6 with a third party;

7 2. "Commercial sex" means any form of commercial sexual
8 activity such as sexually explicit performances, prostitution,
9 participation in the production of pornography, performance in a
10 strip club, or exotic dancing or display;

11 3. "Debt bondage" means the status or condition of a debtor
12 arising from a pledge by the debtor of his or her personal services
13 or of those of a person under his or her control as a security for
14 debt if the value of those services as reasonably assessed is not
15 applied toward the liquidation of the debt or the length and nature
16 of those services are not respectively limited and defined;

17 4. "Human trafficking" means modern-day slavery that includes,
18 but is not limited to, extreme exploitation and the denial of
19 freedom or liberty of an individual for purposes of deriving benefit
20 from that individual's commercial sex act or labor;

21 5. "Human trafficking for labor" means:

22 a. recruiting, enticing, harboring, maintaining,
23 transporting, providing or obtaining, by any means,
24 another person through deception, force, fraud, threat

1 or coercion or for purposes of engaging the person in
2 labor, or

3 b. benefiting, financially or by receiving anything of
4 value, from participation in a venture that has
5 engaged in an act of trafficking for labor;

6 6. "Human trafficking for commercial sex" means:

7 a. recruiting, enticing, harboring, maintaining,
8 transporting, providing or obtaining, by any means,
9 another person through deception, force, fraud, threat
10 or coercion for purposes of engaging the person in a
11 commercial sex act,

12 b. recruiting, enticing, harboring, maintaining,
13 transporting, providing, purchasing or obtaining, by
14 any means, a minor for purposes of engaging the minor
15 in a commercial sex act, or

16 c. benefiting, financially or by receiving anything of
17 value, from participating in a venture that has
18 engaged in an act of trafficking for commercial sex;

19 7. "Legal process" means the criminal law, the civil law, or
20 the regulatory system of the federal government, any state,
21 territory, district, commonwealth, or trust territory therein, and
22 any foreign government or subdivision thereof and includes legal
23 civil actions, criminal actions, and regulatory petitions or
24 applications;

1 8. "Minor" means an individual under eighteen (18) years of
2 age; and

3 9. "Victim" means a person against whom a violation of any
4 provision of this section has been committed.

5 B. It shall be unlawful to knowingly engage in human
6 trafficking.

7 C. Any person violating the provisions of this section shall,
8 upon conviction, be guilty of a Class A2 felony offense punishable
9 by imprisonment in the custody of the Department of Corrections for
10 a term of not less than five (5) years or for life, or by a fine of
11 not more than One Hundred Thousand Dollars (\$100,000.00), or by both
12 such fine and imprisonment. Any person violating the provisions of
13 this section where the victim of the offense is under eighteen (18)
14 years of age at the time of the offense shall, upon conviction, be
15 guilty of a Class A2 felony offense punishable by imprisonment in
16 the custody of the Department of Corrections for a term of not less
17 than fifteen (15) years or for life, or by a fine of not more than
18 Two Hundred Fifty Thousand Dollars (\$250,000.00), or by both such
19 fine and imprisonment. The court shall also order the defendant to
20 pay restitution to the victim as provided in Section 991f of Title
21 22 of the Oklahoma Statutes. If the person is convicted of human
22 trafficking, the person shall serve eighty-five percent (85%) of the
23 sentence before being eligible for parole consideration or any
24 earned credits. The terms of imprisonment specified in this

1 subsection shall not be subject to statutory provisions for
2 suspension, deferral, or probation, or state correctional
3 institution earned credits accruing from and after November 1, 1989,
4 except for the achievement earned credits authorized by subsection H
5 of Section 138 of Title 57 of the Oklahoma Statutes. To qualify for
6 such achievement earned credits, such inmates must also be in
7 compliance with the standards for Class level 2 behavior, as defined
8 in subsection D of Section 138 of Title 57 of the Oklahoma Statutes.

9 D. It is an affirmative defense to prosecution for a criminal,
10 youthful offender, or delinquent offense that, during the time of
11 the alleged commission of the offense, the defendant or alleged
12 youthful offender or delinquent was a victim of human trafficking.

13 E. The consent of a victim to the activity prohibited by this
14 section shall not constitute a defense.

15 F. Lack of knowledge of the age of the victim shall not
16 constitute a defense to the activity prohibited by this section with
17 respect to human trafficking of a minor.

18 SECTION 2. This act shall become effective November 1, 2026.

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